CONSTITUTION OF INDIA

Module 2

Union Executive and State Executive

Powers of Indian Parliament Functions of Rajya Sabha, Functions of Lok Sabha, Powers and Functions of the President, Comparison of powers of Indian President with the United States, Powers and Functions of the Prime Minister, Judiciary – The Independence of the Supreme Court, Appointment of Judges, Judicial Review, Public Interest Litigation, Judicial Activism, LokPal, Lok Ayukta, The Lokpal and Lok ayuktas Act 2013, State Executives – Powers and Functions of the Governor, Powers and Functions of the Chief Minister, Functions of State Cabinet, Functions of State Legislature, Functions of High Court and Subordinate Courts.

INDIAN PARLIAMENT

Article No.	Description
79	There shall be a Parliament for the Union which shall consist of the President and two Houses to be known respectively as the Council of States and the House of the People.
80(1)	The Council of States or Rajya Sabha shall consist of: (a)twelve members to be nominated by the President and (b)not more than **two hundred and thirty eight** representatives of the States and of the Union territories.
80(2)	The allocation of seats in the Council of States to be filled by representatives of the States

INDIAN PARLIAMENT

Article No.	Description
80(3)	The members to be nominated by the President under sub - clause (a) of clause (1) shall consist of persons having special knowledge or practical experience in respect of such matters as the following, namely: Literature, Science, Art and Social Service.
80(4)	The representatives of each State in the Council of States shall be elected by the elected members of the Legislative Assembly of the State in accordance with the system of proportional representation by means of the single transferable vote.

INDIAN PARLIAMENT

Article No.	Description
80(5)	The representatives of the Union territories in the Council of States shall be chosen in such manner as Parliament may by law prescribe.
81(1)	the House of the People shall consist of : (a) not more than [five hundred and thirty members] chosen by direct election from territorial constituencies in the States, and (b) not more than twenty members to represent the Union territories, chosen in such manner as Parliament may by law provide.

INDIAN PARLIAMENT

Article No.	Description
83(1)	The Council of States shall not be subject to dissolution, but as nearly as possible one-third of the members thereof shall retire as soon as may be on the expiration of every second year in accordance with the provisions made in that behalf by Parliament by law.
83(2)	The House of the People, unless sooner dissolved, shall continue for five years from the date appointed for its first meeting.

Article No.	Description
88	Every Minister and the Attorney - General of India shall have the right to speak in, and otherwise to take part in the proceedings of, either House, any joint sitting of the Houses, and any committee of Parliament of which he may be named a member, but shall not by virtue of this article be entitled to vote
89(1)	The Vice-President of India shall be ex officio Chairman of the Council of States.
89(2)	The Council of States shall, as soon as may be, choose a member of the Council to be Deputy Chairman thereof and, so often as the office of Deputy Chairman becomes vacant, the Council shall choose another member to be Deputy Chairman thereof.

Article No.	Description
90	A member holding office as Deputy Chairman of the Council of States : (a) shall vacate his office if he ceases to be a member of the Council; (b) may at any time, by writing under his hand addressed to the Chairman, resign his office; and (c) may be removed from his office by a resolution of the Council passed by a majority of all the then members of the Council.

Article No.	Description
91(1)	While the office of Chairman is vacant, or during any period when the Vice-President is acting as, or discharging the functions of, President, the duties of the office shall be performed by the Deputy Chairman, or, if the office of Deputy Chairman is also vacant, by such member of the Council of States as the President may appoint for the purpose.

Article No.	Description
94(1)	A member holding office as Speaker or Deputy Speaker of the House of the People : (a) shall vacate his office if he ceases to be a member of the House of the People; (b) may at any time, by writing under his hand addressed, if such member is the Speaker, to the Deputy Speaker, and if such member is the Deputy Speaker, to the Speaker, resign his office; and (c) may be removed from his office by a resolution of the House of the People passed by a majority of all the then members of the House

INDIAN PARLIAMENT

Article No.	Description
97	While the office of Speaker is vacant, the duties of the office shall be performed by the Deputy Speaker or, if the office of Deputy Speaker is also vacant, by such member of the House of the People as the President may appoint for the purpose.
98(1)	Each House of Parliament shall have a separate secretarial staff

Article No.	Description
100(1)	Save as otherwise provided in this Constitution, all questions at any sitting of either House or joint sitting of the Houses shall be determined by a majority of votes of the members present and voting, other than the Speaker or person acting as Chairman or Speaker. The Chairman or Speaker, or person acting as such, shall not vote in the first instance, but shall have and exercise a casting vote in the case of an equality of votes
100(4)	If at any time during a meeting of a House there is no quorum, it shall be the duty of the Chairman or Speaker, or person acting as such, either to adjourn the House or to suspend the meeting until there is a quorum.

INDIAN PARLIAMENT

Article No.	Description
101(1)	No person shall be a member of both Houses of Parliament and provision shall be made by Parliament by law for the vacation by a person who is chosen a member of both Houses of his seat in one House or the other.

INDIAN PARLIAMENT

Article No.	Description
102(1)	A person shall be disqualified for being chosen as, and for being, a member of either House of Parliament - (a) if he holds any office of profit under the Government of India or the Government of any State, other than an office declared by Parliament by law not to disqualify its holder; (b) if he is of unsound mind and stands so declared by a competent court; (c) if he is an undischarged insolvent; (d) if he is not a citizen of India, or has voluntarily acquired the citizenship of a foreign State, or is under any acknowledgment of allegiance or adherence to a foreign State; (e) if he is so disqualified by or under any law made by Parliament

INDIAN PARLIAMENT

Article No.	Description
105(1)	Subject to the provisions of this Constitution and to the rules and standing orders regulating the procedure of Parliament, there shall be freedom of speech in Parliament.
105(2)	No member of Parliament shall be liable to any proceedings in any court in respect of anything said or any vote given by him in Parliament or any committee thereof, and no person shall be so liable in respect of the publication by or under the authority of either House of Parliament of any report, paper, votes or proceedings.

INDIAN PARLIAMENT

Article No.	Description
107(1)	Subject to the provisions of articles 109 and 117 with respect to Money Bills and other financial Bills, a Bill may originate in either House of Parliament.
107(2)	Subject to the provisions of articles 108 and 109, a Bill shall not be deemed to have been passed by the Houses of Parliament unless it has been agreed to by both Houses, either without amendment or with such amendments only as are agreed to by both Houses.
107(3)	A Bill pending in Parliament shall not lapse by reason of the prorogation of the Houses.
107(4)	A Bill pending in the Council of States which has not been passed by the House of the People shall not lapse on a dissolution of the House of the People.
107(5)	A Bill which is pending in the House of the People, or which having been passed by the House of the People is pending in the Council of States, shall, subject to the provisions of article 108, lapse on a dissolution of the House of the People.

INDIAN PARLIAMENT

Article No.	Description
108(1)	If after a Bill has been passed by one House and transmitted to the other House – (a) the Bill is rejected by the other House; or (b) the Houses have finally disagreed as to the amendments to be made in the Bill; or (c) more than six months elapse from the date of the reception of the Bill by the other House without the Bill being passed by it,

INDIAN PARLIAMENT

- The President may, unless the Bill has lapsed by reason of a dissolution of the House of the People, notify to the Houses by message if they are sitting or by public notification if they are not sitting, his intention to summon them to meet in a joint sitting for the purpose of deliberating and voting on the Bill

- All the legislative powers of the federal Government are vested in the Parliament. The laws framed by the Indian Parliament are enforced in the whole of the country. The Parliament of India is a bi-cameral legislature. It consists of two houses- Rajya Sabha Lok Sabha and President of India.
- Parliament makes law with the help of its both the chambers. Laws passed by the parliament and approved by the president are enforced in the whole country.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

All the subjects in our constitution are divided among state, union and concurrent lists.

On the Concurrent List, Parliamentary law prevails over a conflicting State law (Art. 254). Parliament may make laws on State List subjects in these cases:

- When Rajya Sabha passes a resolution to that effect
- When national emergency is under operation
- When two or more states request parliament to do so
- When necessary to give effect to international agreements, treaties and conventions
- When President's rule is in operation.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- According to parliamentary form of government executive is responsible to the parliament for its acts and policies. Hence parliament exercises control by various measures like committees, question hour, zero hour etc.
- Ministers are collectively responsible to the Parliament.
- Question Hour is the first hour of every sitting of a House where the members ask questions to the government.
- “Zero Hour” is the session that is held after the “Question Hour”. Zero hour generally starts at 12 noon so the name follows.
- During the zero hour the questions of the national importance can be raised by the members, however with the prior notice to the speaker.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- There are four kinds of questions
  - Starred questions[listed in green colour]
  - Un-starred questions[listed in white colour],
  - Short notice questions[listed in light pink colour] and
  - Questions to the private members[listed in yellow colour].
- A starred question is distinguished by an asterisk and needs an oral answer. Since the answer is oral, supplementary questions might follow a starred question. Only 20 questions can be listed for oral answer on a day
- An Unstarred Question is one to which written answer is desired by the member and is deemed to be laid on the Table of the House by Minister. Thus it is not called for oral answer in the House and no supplementary question can be asked thereon.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- Only 230 questions can be listed for written answer on a day.
- In addition to this, 25 more questions can also be included in the Un-starred List relating to the States under Presidential Rule and the total number of questions in the list of Un-starred Questions for a day may not exceed 255 in relaxation of normal limit of 230 questions.
- A Short Notice Question is one which relates to a matter of urgent public importance and can be asked with shorter notice[less than 10 days] than the period of notice prescribed for an ordinary question[generally 15 days earlier it used to be maximum 21 days and minimum 10 days].
- Like a starred question, it is answered orally followed by supplementary questions.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- The Question to a Private Member is addressed to the Member himself/herself and it is asked when the subject matter of it pertains to any Bill, Resolution or any matter relating to the Business of the House for which that Member is responsible. For such Questions, the same procedure is followed as in the case of Questions addressed to a Minister with such variations as the Speaker may consider necessary or convenient.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- It includes enactment of budget, scrutinizing the performance of government with respect of financial spending through financial committees (post budgetary control)
- Parliament enjoys the supreme authority in financial matters.
- Executive cannot spend any money without parliament's approval. No tax can be imposed without the authority of law.
- The government places the budget before the parliament for approval. The passage of the budget means that the parliament has legalised the receipts and expenditure of the government.
- The public accounts committee and the Estimates committee keep a watch on the spending of the government. These committees scrutinize the account and bring out the cases of irregular, unauthorised or improper usage in public expenditure.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- To amend the constitution, to pass any laws required etc.
- Simple Majority: These bills need to be passed by simple majority, that is, a majority of members present and voting in each of the House.
- Special Majority: These bills need to be passed by the majority of the House and two-third of the members present and voting in each of the House.
- Special majority and consent of half of all the state legislatures: These bills are to be passed by the special majority in each house. Along with this, at least half of the state legislatures should give consent to the bill.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- Impeachment of President for violation of constitution
- Removal of judges of Supreme Court and High court
- Removal of Vice- President
- Punish members for breach of privileges like sitting in the house when the member knows he is not an eligible member, serving as member before taking oath etc.

POWERS OF INDIAN PARLIAMENT

Its powers and functions can be classified in to following heads:

- Legislative powers
- Executive powers
- Financial powers
- Constituent powers
- Judicial powers
- Electoral powers
- Other powers

- To discuss various issues of national and international importance
- Imposing emergency
- Increase or decrease area, change names, alter the boundary of the states
- Create or abolish state legislature etc any powers can be added from time to time

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- Head of the Union: The President is at the head of the Union Executive. Consequently, all executive powers are exercised in his name. The executive power of the Union to be exercised by the President is extended to the matters with respect to which Parliament has power to make laws and to conclude treaty and agreement.
- Appointments: As head of the executive, the President appoints the Governors of States, the Judges of the Supreme Court and the High Courts, the Comptroller and Auditor General of India and many other high officials, such as the members of Finance Commission, Election commission, Union Public Service Commission etc.

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- Appointment of the Prime Minister and other Ministers: The President also appoints the Prime Minister and with his advice the other Ministers of the Union Council of Ministers.
- Can ask to prove Majority in Lok Sabha: Union Council of Ministers normally remains in office for five years, unless dissolved earlier for any reason. The President must be satisfied that the Council of Ministers enjoys the confidence of the majority of the Lok Sabha.
- In case of any doubt he can ask the Council of Ministers to prove its majority in the Lok Sabha

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- President is a part of Parliament: The Union Legislature or Parliament consists of the President and two Houses of Parliament. The President is, therefore, an integral part of Union Legislature. He shall summon from time to time, either separately or jointly, the Houses of Parliament.
- Summons and Addresses Parliament: The President may address either or both House of Parliament. In such address, at the first session after each general election and at the first session of each year (Art. 87).

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- Nomination: The President nominates 12 members to the Rajya Sabha (Anglo-Indian nomination to the Lok Sabha ended in 2020, 104th Amendment). The chief purpose of the nomination is to ensure adequate representation in Parliament of all sections of population which many not always be achieved through elections.
- Power in respect of Bills: The President has certain functions in respect of passing of a Bill. A bill passed by both the Houses of Parliament requires his assent in order to become an Act.
- He may give his assent to a bill or can withhold assent when a bill, after getting approved in both the Houses, is placed before the President.
- But, if Parliament, acting on President's refusal to assent to a bill, passes it again with or without amendment, for the second time and presents it to the President for his approval, the President shall not withhold his assent there from under **Article 111**. In other words, it becomes obligatory upon him to give his assent.

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- Bill passed by a State Legislature: A bill passed by a State Legislature may also be reserved for the consideration of the President by the Governor of that State. The President enjoys this right in relation to a bill passed by a State Legislature only in such cases where those are referred to him by the Government of a State under **Article 200.**

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- The President of India also exercises financial powers.
- No money bill can be introduced in Parliament without the recommendations of the President.
- According to the Constitution of India, the Annual Financial Statement is placed by the President before both the Houses of Parliament.
- This statement shows the estimates of revenue and expenditure of the central Government for the next year.
- It may be pointed out that the proposal for taxation and expenditure cannot be made without the approval of the President.
- No proposal for spending money or raising revenues for purposes of government can be introduced in Parliament without previous permission of the President.

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- The constitution of India empowers the President to proclaim three kinds of Emergencies:
- National Emergency (Art. 352);
- Emergency for failure of Constitutional Machinery in a State (Art. 356); Financial Emergency (Art. 360)
- National Emergency : The President of India may issue a Proclamation of National Emergency when the security of India or any part thereof is threatened by war, armed rebellion or external aggression.

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- Failure of State Constitutional Machinery
- In Case of failure of Constitutional machinery in a State, the President of India is authorized to make a Proclamation to that effect.
- The maximum duration of this type of emergency is three (3) years.
- During such an emergency, the President may assume to himself the executive powers of the State. The powers of the legislatures of the State are to be exercised by the Union Parliament

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- All international treaties and agreements are negotiated and concluded on behalf of the President.
- However, in practice, such negotiations are usually carried out by the Prime Minister along with his Cabinet (especially the Foreign).
- Treaties are an executive act; Parliament must pass a law to implement them (Art. 253). The President represents India in international forums and affairs where such a function is chiefly ceremonial. The President may also send and receive diplomats, i.e. the officers from the Indian Foreign Service. The President is the first citizen of the country.

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- The President is the Supreme Commander of the Indian Armed Forces.
- The President can declare war or conclude peace, on the advice of the Union Council of Ministers headed by the Prime Minister.
- All important treaties and contracts are made in the President's name. He / she also appoints the chiefs of the service branches of the armed forces.

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- The President of India grants, pardons, reprieves or remissions of punishment to any person who has been convicted by a Court of Law. As mentioned in Article 72 of the Indian Constitution, the President is empowered with the powers to grant pardons in the following situations:
- Punishment is for an offence against Union Law
- Punishment is by a Military Court
- Sentence is that of death

POWERS OF PRESIDENT

Its powers and functions are categorised under following heads :

- Executive
- Legislative
- Promulgation of ordinances
- Financial
- Emergency
- Diplomatic
- Military
- Judicial / Pardoning

- Under Art. 74(1) the President acts on the aid and advice of the Council of Ministers headed by the Prime Minister (he may ask them to reconsider once). This applies to the pardoning power too.

FUNCTIONS/POWERS OF PRIME MINISTER

- The Prime Minister recommends the names of members of his team to appoint as a Minister. The President can only make those people as ministers whose names are recommended by the Prime Minister.
- Prime Minister determines which department will be given to which minister and he can also change the allotted department of any Minister.
- He also presides over the meeting of the Council of Ministers and can change the decisions according to his wishes.
- He can ask any minister to resign or advise the president to dismiss him in case of differences of opinion.
- He also controls and directs the activities of all Ministers.
- He can bring about the collapse of the Council of Ministers by resigning from office.

FUNCTIONS/POWERS OF PRIME MINISTER
APPOINTMENTS

1. The Comptroller and Auditor General of India
2. Attorney-General of India
3. Solicitor General of India
4. President of the Union Public Service Commission and its members
5. Chief Election Commissioner and Election Commissioners (on a selection committee's recommendation, 2023 Act)
6. Chairman and Members of the Finance Commission

FUNCTIONS/POWERS OF PRIME MINISTER

PARLIAMENT

- Advises the President with regard to summoning and proroguing of the sessions of the parliament.
- Can advise the President to dissolve the Lok Sabha.
- Declares government policies on the floor of the house.

OTHERS

- Plays an important role in shaping the foreign policy of the nation.
- Is the chief spokesman of the Central Government.
- He / she is the leader of the ruling party.
- Ex-officio Chairperson of NITI Aayog (replaced the Planning Commission in 2015), the National Integration Council, the Inter-State Council and the National Water Resources Council.

INDIAN PRESIDENT VS. US PRESIDENT

Point	Indian President	US President
Mode of election	Indirect: electoral college of elected MPs and MLAs (Art. 54)	Indirect: electoral college (state electors chosen by popular vote)
Headship	Nominal head of State; real power with the Council of Ministers	Head of State and head of government (real executive)
Tenure	5 years; can be re-elected any number of times	4 years; maximum two terms (22nd Amendment)
Legislature	Part of Parliament; ministers answerable to Lok Sabha	Not part of Congress; not answerable to it
Removal	Impeachment by Parliament for violating the Constitution (Art. 61); either House may start it	House of Representatives impeaches; Senate tries
Emergency	Can proclaim emergencies (Part XVIII) on Cabinet's advice	Can declare national emergencies under statute; Congress can end them
Independence	Acts on the aid and advice of the Council of Ministers (Art. 74)	Acts independently; Cabinet only advises
Veto power	Can return a bill once (not a Money Bill); must sign if re-passed	Can veto; Congress overrides by two-thirds of both Houses
Pocket veto	No time limit to assent, so can withhold (used in 1986)	Bill dies if not signed and Congress adjourns within 10 days
State bills	Governor may reserve certain State bills for his consent	No such power
Dissolution	Can dissolve the Lok Sabha on the PM's advice	Cannot dissolve Congress

POWERS OF GOVERNOR

- The Governor of the State, like the President, is entitled to specific powers.
- Legislative – affiliated with ordinance making and State Legislature.
- Executive – affiliated with administrative appointments and discharge.
- Judicial – affiliated with power to grant pardons and respites
- Financial – authority over the state budget and money bills;
- Discretionary – to be exercised at the discretion of the Governor

POWERS OF GOVERNOR - EXECUTIVE

- As per Article 154, the Constitution states that the executive power of the State shall be vested in the Governor who can exercise them through directly or indirectly through subordinate officers
- The State Government undertakes all executive action in the name of the Governor.
- As per Article 164, the Governor has the power to appoint the Chief Minister of the State, and upon the Chief Minister's recommendation, the appointment of other ministers.

POWERS OF GOVERNOR - EXECUTIVE

- The Governor appoints the Advocate General of the State, State Election Commissioners and the chairman and members of the State Public Service Commission. However, the Governor **cannot** remove the members of the State Public Service Commission as they can only be removed by an order of the President.
- In States with bicameral legislature, the Governor can further nominate to the Legislative Council persons with special knowledge or practical experience in matters of literature, art, science, cooperative movement and social service.

POWERS OF GOVERNOR - LEGISLATIVE

- The Governor can summon, prorogue, defer or dissolve the State Legislative Assembly, his decisions often taken in counsel with the Chief Minister and the Council of Ministers.
- The Governor has the power to nominate 1/6th of the State Legislative Council.
- Nomination of an Anglo-Indian member to the Legislative Assembly (Art. 333) ended with the 104th Amendment (2020).

POWERS OF GOVERNOR - LEGISLATIVE

- As per Article 200, the Constitution confers the Governor with the power to assent, withhold assent, return for reconsideration, or reserve for President's consideration on any Bill.
- But should the Vidhan Sabha send back a returned Bill to the Governor the second time, then he has to sign it.
- As per Article 213 the Constitution of India confers the Governor the power to promulgate an ordinance when the Legislative Assembly of the State is not in session.
- Notwithstanding the immediate effect of the law, it must be presented in the next session in the State Legislature, and it ceases to operate six weeks after the Legislature reassembles, unless approved earlier.

POWERS OF GOVERNOR - LEGISLATIVE

- The Governor lays reports of State Finance Commission, State Public Service Commission and Comptroller and Auditor General relating to the account of the State in the Legislative Assembly.
- Governor inaugurates the State Legislature, outlining new administrative policies of ruling government at the first session every year.
- The Governor constitutes the Finance Commission to oversee financial positions of Panchayats and Municipalities, and, in the case of any unforeseen circumstances, holds the power to make advances out of the State Contingency Fund.
- A prior recommendation of the Governor is necessary before the introduction of any Money Bills or Demands for Grant.
- The Governor ensures that the annual financial statement or State Budget is laid before the State Legislature.

POWERS OF GOVERNOR - JUDICIAL

- As per Article 161, the Governor can grant pardons, reprieves, respites or remission of punishments, or suspensions, remittances or commutes of sentences of those convicted of an offense to which the executive power of the State extends.
- The Governor is consulted by the President in appointing High Court judges (Art. 217) and appoints District Judges in consultation with the High Court (Art. 233).

POWERS OF GOVERNOR - DISCRETIONARY

- The Governor may report to the President that constitutional machinery has failed (Art. 356); during President's Rule he runs the State on the President's behalf.
- The Governor may exercise his function as the administrator of adjoining Union Territory.
- The Governor holds the power to select the Chief Minister should no political party win a majority in the Vidhan Sabha of the state, or in the Chief Minister’s demise without any obvious successor

GOVERNOR - ELIGIBILITY

- As per the Constitution of India, the following are the eligibility criteria for the appointment of the Governor in a particular state:
- He or she must be a citizen of India.
- He or she must have completed 35 years of age. He or she must not hold any other office of profit.
- He or she must not be a member of the Legislature of the Union or of any other state. There is no bar to the selection of a Governor from among the members of the Legislature, provided that on appointment, he or she immediately ceases to be a Member of the Legislature.

GOVERNOR – SELECTION PROCESS & TENURE

- The Governor is not elected by the process of direct or indirect voting (like the Chief Minister, the Prime Minister or the President).
- The Governor of a particular state is appointed directly by the President of India, for a period of five years. The Governor must meet all the eligibility criteria enumerated above, to be appointed by the President.
- A governor of a state in India holds office for a period of 5 years, but it is subject to termination earlier if:
- The Governor is dismissed by the President, at whose pleasure he holds the office.
- The Governor resigns from his post. There is no retirement age of the Governor, as he or she stays in office for a fixed term.
- There is no provision for a Governor to be impeached from office, unlike that of a President.

GOVERNOR – ROLE

- The Governor is the head of a state just like the President is the head of the republic. The Governor is the nominal head of a state, while the Chief Minister is the executive head.
- All executive actions of the state are taken in the name of the Governor. However, in reality he merely gives his consent to the various executive actions.
- He or she is devoid of taking any major decisions. The real powers in the executive dealings of a state rest with the Chief Minister and the Council of Ministers.
- According to an amendment in the CoI, brought about in 1956, the same person can be the Governor of two or more states. Lieutenant Governors head Delhi, Andaman & Nicobar Islands, Puducherry, Jammu & Kashmir and Ladakh. Other UTs have an Administrator (an IAS officer); Chandigarh's Administrator is the Governor of Punjab.

STATE LEGISLATURE

- Legislation provides the framework for policy formulation and arms the government with powers to implement the policies.
- At the state level, the function of providing the necessary legislative framework is performed by State Legislature.
- Our Constitution provides that every state shall have at least one house, viz., the Legislative Assembly comprising 60 to 500 members chosen by direct election on the basis of adult suffrage from territorial constituencies.
- In addition, any state can create a second house, viz., Legislative Council if it so desires. This can be done by a resolution of the Assembly passed by a special majority (i.e., a majority of total membership of the Assembly not being less than two-thirds of the members actually present and voting) followed by an Act of Parliament.

STATE LEGISLATURE

- By the same process, an existing Legislative Council can be abolished also. West Bengal, Punjab and Tamil Nadu have used this procedure to abolish their Councils.
- At present six States have two Houses: Andhra Pradesh, Bihar, Karnataka, Maharashtra, Telangana and Uttar Pradesh. Whenever constituted, the membership of the Council cannot be more than 1/3 of the membership of the Assembly, but not less than 40. The composition of Council membership is as follows:
  - 1/3 elected by members of local bodies.
  - 1/12 elected by Electorate of graduates of 3 years' standing
  - 1/12 elected by teachers of 3 years' experience in secondary school or above
  - 1/3 elected by MLAs from non-members of the Assembly
  - 1/6 nominated by the Governor

STATE LEGISLATURE

- Election is to be in accordance with the principle of proportional representation by means of the single transferable vote.
- Duration of the Assembly is five years unless dissolved earlier by the Governor. Its term may be extended by Parliament during a National Emergency, one year at a time, but not beyond six months after the Emergency ends.
- The Legislative Council is a continuing or permanent body with 1/ 3 of its members retiring every second year.

STATE COUNCIL OF MINISTERS

- Art. 163: a Council of Ministers headed by the Chief Minister aids and advises the Governor, except where he acts in his discretion.
- Art. 164: the Governor appoints the Chief Minister, and appoints the other ministers on the Chief Minister's advice.
- The Council of Ministers is collectively responsible to the Legislative Assembly (Art. 164(2)).
- Size (91st Amendment, 2003): not more than 15% of the Assembly's strength, and at least 12 ministers in most States.
- A minister who is not a member of the Legislature for six consecutive months ceases to be a minister (Art. 164(4)).
- The Cabinet, the smaller group of senior ministers, takes the main policy decisions.

CHIEF MINISTER - APPOINTMENTS

- The Governor appoints the leader of the majority party in the State Legislative Assembly as the Chief Minister. He is the head of the State Council of Ministers. The State Council of Ministers revolves round him.
- The Chief Minister remains in office so long as he commands support of the majority members of the Legislative Assembly.
- When he loses support in the legislature, he has to resign. The resignation of the Chief Minister must means the resignation of the whole Council of Ministers in the State.
- The Chief Minister must be a member of the State Legislature. If he / she is not a member of the State legislature at the time of his taking over charge, then he must be so within a period of six months.

CHIEF MINISTER – POWERS & FUNCTIONS

- The Chief Minister plays an important role in the formation of the Council of Ministers.
- On the advice of the Chief Minister, the Governor appoints the other Ministers of the Council of Ministers and distributes among them the portfolios. As the head of the Council of Ministers, he presides over the meetings of the Council of Ministers and the Cabinet.
- The Chief Minister supervises the activities of different ministries and advises them accordingly. He also coordinates the activities of different ministries. He has to see that the principle of collective responsibility is maintained by the Ministers.

CHIEF MINISTER – POWERS & FUNCTIONS

- The Chief Minister plays an important role in making policies of the State Government. He has to ensure that the policies of the government do not go against public interest. His voice is final in policy decisions of the State Government.
- He also an important role in making higher appointments of the State Government. The Governor appoints different higher officials of the State Government on the advice of the Chief Minister and his Council of Ministers.
- The Chief Minister is the channel of communication between the Governor and the other members of the Council of Ministers. He has to keep the Governor informed of the decisions taken by the Council of Ministers on various matters relating to State administration.

CHIEF MINISTER – POWERS & FUNCTIONS

- The Chief Minister is the chief administrator of the State. All major decisions of the State Government are taken under his leadership. He is responsible for over all working of the state departments. He has also to maintain a good and harmonious relation with the Central Government.
- As the leader of the majority party in the Legislative Assembly, the Chief Minister has to see that party discipline is maintained in the House. He has also to defend the ministers of his Council of Ministers on the floor of the House from the criticisms of the opposition.
- The success of the State Government depends to a great extent upon the leadership of the Chief Mister. If he is strong, dynamic and efficient, them the government will definitely perform well and rise up to the expectations of the people.

BICAMERAL STATE LEGISLATURE - PROCEDURE

Money Bill :

- A Money Bill can originate only in the Legislative Assembly and not in the Council.
- The Council cannot reject or modify this Bill passed by the Assembly. It can only make recommendations, which may or may not be accepted by the Assembly.
- The Bill as passed by the Assembly with or without modification, is presented to the Governor for assent. If the Council does not return the Bill within 14 days, it can straightaway be presented to the Governor for his assent.
- Thus, the will of the Assembly ultimately prevails. The Council can at best delay its passage.

BICAMERAL STATE LEGISLATURE - PROCEDURE

Other than Money Bill :

- Such a Bill can originate in either House.
- If a Bill is passed by the Assembly, the Council may reject the Bill, modify it; or may not pass it for three months. If the Bill is again passed by the Assembly with or without modification, the Council, on its second journey, may only delay it by one month.
- If a Bill originates in the Council and is rejected by the Assembly, the matter ends

Governor – Veto

When a Bill, passed by State Legislature, is presented to the Governor for his assent:

- The Governor may assent to the Bill, in which case it would become law.
- He may withhold assent, in which case it does not become law.
- He may, in case of a Bill other than a Money Bill, return the Bill with a message.
- The Governor may reserve a Bill for the consideration of the President.

Legislative Assembly – Powers & Functions

- The main duty of the Legislative Assembly is to make laws for the state.
- It can make law on the subjects mentioned in the state list and the concurrent list. However, during state emergency, it can not exercise its legislative power.
- The assembly has control over the State council of Ministers. The State council of ministers is responsible or answerable to the Assembly for its activities. The Assembly many pass a no- confidence motion against the council of Ministers and bring its downfall if it is not satisfied with the performance of the council of Ministers.
- The legislation Assembly has control over the finances of the state. A money bill can be introduced only on the floor of the Assembly. The government can not impose, increase, lower or withdraw any tax without the approval of the Assembly.
- The elected members of the Legislative Assembly can take part in the election of the president of India and all members can take part in the election of the members of the Rajya Sabha from the state.

Legislative Council – Powers & Functions

- Ordinary bills can be introduced in the Council on any matter of the State List and the Concurrent List.
- A money bill can not be introduced in the Legislative Council. A money bill passed by the Legislative Assembly must be adopted by the Legislative Council within a period of 14 days.
- If a money bill is not adopted within that period, then it is regarded as passed by both houses of the State legislature.

The Legislative Council exercises control over the Council of Ministers. The members can ask questions to the Ministers on various matters and can introduce motions against the ministers. However, it can not pass a no- confidence motion against the Council of Ministers.

Legislative Council – Powers & Functions

- The existence of the Legislative Council is criticized as purposeless. It is not only less powerful than that of the Legislative Assembly, but also can not be compared with the Rajya Sabha of the Union parliament. The Rajya Sabha, which is an upper house like that of the Legislative Council, is not as powerless as the Legislative Council. The Legislative Council is often regarded as ornamental in terms of powers and functions.

JUDICIAL SYSTEM IN INDIA

- Supreme Court of India: the apex court (Art. 124)
- High Courts: one for each State or group of States (Art. 214)
- District Courts: subordinate courts under the High Court (Arts. 233-237)
  - Civil side: District Judge, Civil Judge (Senior Division), Civil Judge (Junior Division)
  - Criminal side: Court of Session, Chief Judicial Magistrate, Judicial Magistrates
- Tribunals, Lok Adalats and Gram Nyayalayas supplement the court system

INDEPENDENCE OF JUDICIARY

Simply stated independence of judiciary means that :

- The other organs of the government like the executive and legislature must not restrain the functioning of the judiciary in such a way that it is unable to do justice.
- The other organs of the government should not interfere with the decision of the judiciary.
- Judges must be able to perform their functions without fear or favor.
- Independence of the judiciary does not imply arbitrariness or absence of accountability.Judiciary is a part of the democratic political structure of the country. It is therefore accountable to the Constitution, to the democratic traditions and to the people of the country.

INDEPENDENCE OF JUDICIARY

The Indian Constitution has ensured the independence of the judiciary through a number of measures as under :

- The legislature is not involved in the process of appointment of judges. In order to be appointed as a judge, a person must have experience as a lawyer and/or must be well versed in law. Political opinions of the person or his/ her political loyalty should not be the criteria for appointments to judiciary.
- The judges have a fixed tenure. They hold office till reaching the age of retirement. Only in exceptional cases, judges may be removed. But otherwise, they have security of tenure. Security of tenure ensures that judges could function without fear or favor

INDEPENDENCE OF JUDICIARY

The Indian Constitution has ensured the independence of the judiciary through a number of measures as under :

- The Constitution prescribes a very difficult procedure for removal of judges. The Constitution makers believed that a difficult procedure of removal would provide security of office to the members of judiciary.
- The judiciary is not financially dependent on either the executive or legislature. The Constitution provides that the salaries and allowances of the judges are not subjected to the approval of the legislature.

INDEPENDENCE OF JUDICIARY

The Indian Constitution has ensured the independence of the judiciary through a number of measures as under :

- The actions and decisions of the judges are immune from personal criticisms. The judiciary has the power to penalize those who are found guilty of contempt of court. This authority of the court is seen as an effective protection to the judges from unfair criticism.
- Parliament cannot discuss the conduct of the judges except when the proceeding to remove a judge is being carried out. This gives the judiciary independence to adjudicate without fear of being criticized.

APPOINTMENT OF JUDGES

Council of Ministers, Governors and Chief Ministers and Chief Justice of India — all influence the process of judicial appointment.

- As far as the appointment of the Chief Justice of India (CJI) is concerned, over the years, a convention had developed whereby the senior-most judge of the Supreme Court was appointed as the Chief Justice of India.
- The other Judges of the Supreme Court and the High Court are appointed by the President after consulting the CJI; in practice they act on the Collegium's recommendation.

APPOINTMENT OF JUDGES

The Supreme Court evolved the Collegium system (Second and Third Judges Cases, 1993 and 1998):

- It has suggested that the Chief Justice should recommend names of persons to be appointed in consultation with four senior-most judges of the Court.

Thus, the Supreme Court has established the principle of collegiality in making recommendations for appointments. The NJAC (99th Amendment) was struck down in 2015

REMOVAL OF JUDGES

- The removal of judges of the Supreme Court and the High Courts is also extremely difficult.
- A judge of the Supreme Court or High Court can be removed only on the ground of proven misbehavior or incapacity.
- A motion containing the charges against the judge must be approved by special majority in both Houses of the Parliament.

JUDICIAL STRUCTURE IN INDIA

Supreme Court of India

Its decisions are binding on all courts ,
Can move cases from any court to itself, Can transfer cases from one High Court to another.

High Court

Can hear appeals from lower courts, Can issue writs for restoring Fundamental Rights.
Can deal with cases within the jurisdiction of the State, Exercises superintendence and control over courts below it.

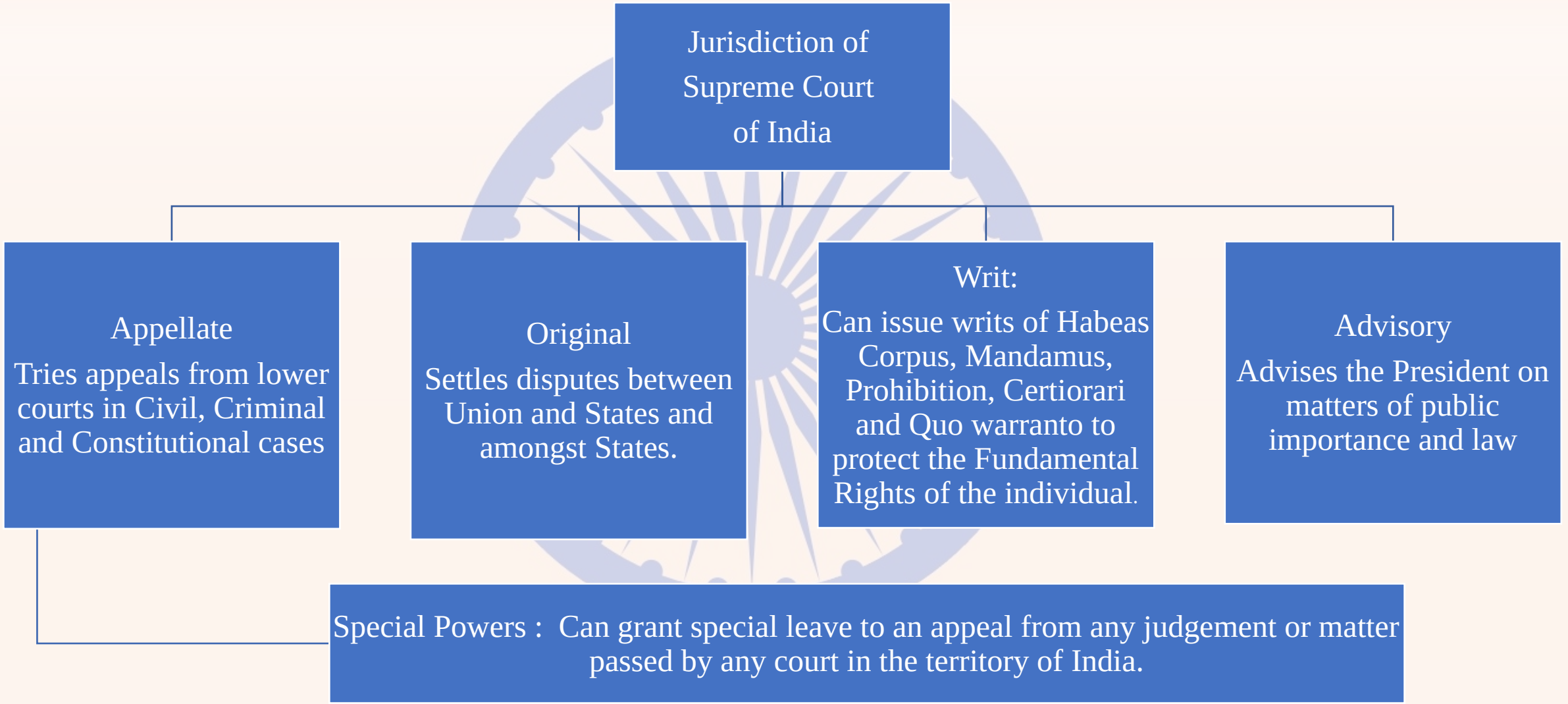
District Court

Deals with cases arising in the District, Considers appeals on decisions given by lower courts.
Decides cases involving serious criminal offences and control over courts below it.

Subordinate Courts

Consider cases of civil and criminal nature

JURISDICTION OF SUPREME COURT



JUDICIAL ACTIVISM

- The chief instrument through which judicial activism has flourished in India is Public Interest Litigation (PIL) or Social Action Litigation (SAL).
- That is to say, a person whose rights have been violated, or who is involved in a dispute, could move the court of law.
- In 1979 (Hussainara Khatoon v. State of Bihar), the Court set the trend when it decided to hear a case where the case was filed not by the aggrieved persons but by others on their behalf.
- As this case involved a consideration of an issue of public interest, it and such other cases came to be known as public interest litigation.

JUDICIAL ACTIVISM

- Around the same time, the Supreme Court also took up the case about rights of prisoners.
- This opened the gates for large number of cases where public spirited citizens and voluntary organizations sought judicial intervention for protection of existing rights, betterment of life conditions of the poor, protection of the environment, and many other issues in the interest of the public. PIL has become the most important vehicle of judicial activism.
- Judiciary, which is an institution that traditionally confined to responding to cases brought before it, began considering many cases merely on the basis of newspaper reports and postal complaints received by the court. Therefore, the term judicial activism became the more popular description of the role of the judiciary.

JUDICIAL ACTIVISM

- Through the PIL, the court has expanded the idea of rights. Clean air, unpolluted water, decent living, etc., are rights for the entire society.
- Therefore, it was felt by the courts that individuals as parts of the society must have the right to seek justice wherever such rights were violated.
- Secondly, through PIL and judicial activism of the post-1980 period, the judiciary has also shown readiness to take into consideration rights of those sections who cannot easily approach the courts.
- For this purpose, the judiciary allowed public spirited citizens, social organizations and lawyers to file petitions on behalf of the needy and the deprived.

JUDICIAL ACTIVISM - POSITIVE IMPACT

- Judicial activism has had manifold impact on the political system :
- It has democratized the judicial system by giving not just to individuals but also groups access to the courts.
- It has forced executive accountability.
- It has also made an attempt to make the electoral system much more free and fair. The court asked candidates contesting elections to file affidavits indicating their assets and income along with educational qualifications so that the people could elect their representatives based on accurate knowledge.

JUDICIAL ACTIVISM - NEGATIVE IMPACT

Judicial activism has had manifold negative impact on the political system :

- There is however a negative side to the large number of PILs and the idea of a proactive judiciary.
- In the first place it has overburdened the courts.
- Secondly, judicial activism has blurred the line of distinction between the executive and legislature on the one hand and the judiciary on the other.
- The court has been involved in resolving questions which belong to the executive. Thus, for instance, reducing air or sound pollution or investigating cases of corruption or bringing about electoral reform is not exactly the duty of the Judiciary.

LOK PAL & LOKAYUKTA

The Lokpal consists of a Chairperson and eight members.
Four of the judicial members have been former Chief Justices of different High Courts and the four non-judicial members have been from All India Services/Central Services.
The Chairperson and members bring with them rich experience and probity, which they have maintained in the public offices that they have held.
The first Chairperson of the Lokpal was Shri Justice Pinaki Chandra Ghose (2019-2022), who is a former Judge of Supreme Court of India and was a sitting member of National Human Rights Commission.
The present Chairperson is Justice Ajay Manikrao Khanwilkar (appointed March 2024).

ASSIGNMENT 2

1. Discuss the powers & functions of the parliament.

2. Giving insight into the powers & functions of Indian President compare with the US counterpart.

3. Discuss the powers & functions of Indian PM.

4. What provisions have been made to ensure the independence of the judiciary in India.

5. Explain 'judicial activism'. What is meant by a PIL or SAL.

6. Discuss the powers & functions of the Governor of a state.

7. Describe the judicial system & structure in India.

8. Discuss the powers & functions of the Chief Minister.

9. Describe the powers & functions of the Supreme court of India. 10. Explain Lok Pal & Lok Ayukta Act of 2013.

11. Explain the jurisdiction of the Supreme court of India. What are various types of writs that can be issued by it & in what condition.?

12. Describe the powers & functions of the High court, subordinate & other lower courts in India.

SOURCES

1. Brij Kishore Sharma: Introduction to the Indian Constitution, PHI, New Delhi, latest edition.
2. Granville Austin: The Indian Constitution: Cornerstone of a Nation. 1966, Oxford Clarendon Press.
3. Subhash C. Kashyap: Our Constitution: An Introduction to India's Constitution and constitutional Law, NBT, 2018.
4. PM Bakshi: The Constitution of India, Latest Edition, Universal Law Publishing.
5. V.K. Ahuja: Law Relating to Intellectual Property Rights (2007)
6. Suresh T. Viswanathan: The Indian Cyber Laws, Bharat Law House, New Delhi-88
7. P. Narayan: Intellectual Property Law, Eastern Law House, New Delhi
8. Prabudh Ganguli: Gearing up for Patents: The Indian Scenario, Orient Longman
9. BL Wadehra: Patents, Trademarks, Designs and Geological Indications. Universal Law Publishing - LexisNexis.
10. Intellectual Property Rights: Law and Practice, Module III by ICSI (only relevant sections)
11. Executive programme study material Company Law, Module II, by ICSI (The Institute of Companies Secretaries of India) (Only relevant sections i.e., Study 1, 4 and 36.
12. 'https://www.icsi.edu/media/webmodules/publications/Company%20Law.pdf
13. Handbook on e-Governance Project Lifecycle, Department of Electronics & Information Technology, Government of India
14. https:// www.meity.gov.in/writereaddata/files/e- Governance_Project_Lifecycle_Participant_Handbook-5Day_CourseV1_20412.pdf
15. Companies Act, 2013 Key highlights and analysis by PWC. https://www.pwc.in/assets/pdfs/publications/2013/companies-act-2013-key-highlights-andanalysis..pdf
16. NCERT text book